HOSEA MARUMAHOKO
And
ALEX MARUMAHOKO
Versus
OSCAR KURASHA

HIGH COURT OF ZIMBABWE
**MUZOFA, BACHI – MZAWAZI JJ**
CHINHOYI, 26 November 2025

**Civil Appeal**

*F. Murisi,* for the appellants
*K. Choga,* for the respondent

**MUZOFA J:** [1] *Mr Choga* for the respondent conceded that the founding affidavit by the respondent before the court *a quo* was defective. To that end a concession was made that the appeal should be allowed. There was no case before the court *a quo*. The only issue for determination before us, was the appropriate order to be granted by this court on appeal. Parties could not agree.

**Factual Background**

[2] The appellants and the respondent are embroiled in a mining dispute at a mine known as Van Wyk V Mine, Chinhoyi "hereinafter referred to as the mine".

[3] From the appellants it seems (though not conceded by respondents) the parties have a loose agreement to jointly conduct mining activities. The terms and conditions of their understanding are irrelevant for the purposes of this case.

[4] What is common cause is that there was a heap of gold ore at the mine. The respondent hired some trucks to ferry the gold ore for processing. It is alleged that the appellants threatened the workers and prevented the transportation of the ore.

[5] The respondent approached the court *a quo* in an ex-parte application to interdict the appellants from visiting the mine and stop interfering with the removal of the gold ore. The interim order was granted.

[6] On the return date, the appellants being the respondents in the court *a quo* opposed the confirmation of the interim order.

[7] In their opposition the appellants raised a number of preliminary points, viz, that the court *a quo* lacked jurisdiction to deal with the matter, that the applicant's affidavit was defective, material non-disclosure, material disputes and an incompetent final order.

[8] The court *a quo* dutifully addressed the preliminary points and the issues on the merits and reasoned that the respondent had satisfied the requirements of an interdict. The respondent had established a clear right through the certificate of registration that was attached, that the appellants interfered with the respondent's rights which established the injury and that no alternative remedy existed to protect his interests.

[9] The court *a quo* then issued the following order;

"1. The respondents shall not interfere with the business of the applicant at Van Wyk V Mine, Chinhoyi.

2. The respondents shall not threaten or insult the applicant or any of his employees, invitees nor service providers at Van Wyk V Mine, Chinhoyi.

3. The respondents shall pay the costs of suit on an ordinary scale."

**The Appeal**

[10] The appellants appealed the decision and set out a number of grounds of appeal impugning the court *a quo's* findings on both the preliminary points and on the substantive issues.

[11] On the date of hearing after *Mr Murisi's* submissions *Mr Choga* took to his feet and conceded that the court *a quo's* findings on the founding affidavit were flawed.

[12] The concession was properly made. The respondent's supporting affidavits were duly signed by a commissioner of oaths who affixed his/her signature but did not affix the date.

[13] In its judgment, the court *a quo* relied on the authority of *Ngwende v Competition and Tariff Commission of HH 91/23* that in terms of the applicable law, there is no requirement that a commissioner of oaths must affix a date. He/she is required to administer the oath to the deponent who must appear before the commissioner and sign.

[14] The position is now settled, not necessarily drawn from legislature but from practice that a commissioner of oaths must administer the oath to a deponent before him/her, affix his/her signature and date. These actions must take place contemporaneously. This has stood the test of time from as far back as the pronouncement in *Mandishayika v Sithole HH 789/15* and *S v Hurle & Ors 1998 (2) ZLR 42* being authority that the actions by the commissioner of oaths must be done contemporaneously to confirm that the deponent indeed appeared and took oath on the same date that the oath was taken.

[16] *Mr Choga* opined that the appeal should be allowed. Since the matter was not heard on the merits this court must substitute the Court *a quo's* order with an order to strike off the matter.

[17] *Per contra*, *Mr Murisi* argued that on the return date the court had two options either to discharge the order or confirm it. There is no provision to strike off the matter from the roll. The interim order would remain hanging.

[18] To that end, this court must allow the appeal, discharge the interim order and order that the status *quo ante* be reverted to, that is return of the gold ore to the mine. Sadly, none of the parties relied on precedent nor statute to support their positions.

**Issues for determination**

[19] Two issues arise for determination as follows:

1. Whether the court *a quo's* order must be substituted with an order to strike off the matter.
2. Whether the respondent should be ordered to retain the status *quo ante.*

**Analysis**

[20] The Appropriate Order

A matter is struck off the roll is it has not been heard on the merits. Practice Direction 3 of 2013 paragraphs 3 to 5 defines the terms and the remedial procedure and it is necessary to reproduce them.

"Struck off the roll

1….

2…..

3. The term shall be used to effectively dispose of matters which are fatally defective and should not have been enrolled in that form in the first place.
4. In accordance with the decision in *Matanhire* v *BP and Shell Marketing Services (Pvt) Ltd* 2004 (2) ZLR 147 (S) and *S* v *Ncube* 1990 (2) ZLR 303 (SC), if a court issues an order that a matter is struck off the roll, the effect is that a matter is no longer before the court.'

[21] Paragraph 3 needs no interpretation. "Struck off the roll" applies in cases which are fatally defective and ought not to have been placed before the court in that form. In other words, it's a stop gap order where the matter, by reason that it was not heard on the merits, it cannot be dismissed. It is given a reprieve, if the applicant/plaintiff is so inclined to approach the court again after regularisation within 30 days. This is the position pronounced and applied in a number of cases. See *Bindura Municipality v Mugogo SC 32/15, Portland Holdings Limited v Tupelostep Investments(proprietary) Limited (2) Tobacco Warehouse & Export t/a Bak Logistics SC3/15, Binga Rural District Council v Mudimba NO & 3 Ors HH 445/23.*

[22] The golden principle that runs through those cases is that where a matter is not heard on the merits it cannot be dismissed, it must be struck off the roll. The rationale is simple the party can still approach the Court and protect their interest.

[23] This would be the end of the matter if what was before the Court a quo was a simple application. The effect of a strike off would not have finalised the matter in the Court a quo.

[23] A court dealing with an *ex- parte* application is regulated and acts within the confines of order 23 r 4 (3) of the Magistrates Court (Civil) Rules, 2019 which provides;

> "An order made ex-parte maybe discharged or varied by the court on cause shown by any person affected thereby, and on such terms as to costs as it thinks just"

[24] The provision only provides for a discharge or granting with or without variations. It does not provide for striking off. It would certainly be untenable to strike off the matter. This is because the proceedings are *sui generis*, on the return date the matter sits on an *ex-parte* application that has already been granted. In other words, the applicant's case has already been granted based on the papers filed before the Court. In this case the applicant's (respondent)

case was not properly before the court. Even if the court would strike off the matter, it serves no purpose, the respondent could not procedurally amend the affidavit.

[25] Technically, to strike off the matter on the return date would leave the ex-parte application hanging in the air, yet the law requires that it is either discharged or confirmed. It follows then that the appropriate order should be a discharge.

[26] Before the court *a quo*, in their opposition the appellants requested the court to discharge the order and in the event the gold ore had already been removed it must be returned, to maintain the status *quo ante*. There was no dispute that the gold ore had been removed. Since the *ex-parte* application should not have been confirmed the status *quo ante* must prevail. That should be the appropriate order.

[27] On costs, the appellants requested for costs on a higher scale. It was not opposed. We therefore granted them.

[28] It is on the foregoing that the following order was granted;

1. The appeal be and is hereby granted.

2. The decision by the court a quo be and is hereby set aside and is substituted with the following:

3. The interim order granted on 18 March 2025 and amended on 20 March 2025 be and is hereby discharged.

4. The applicant be and is hereby ordered to restore the status quo that existed prior to the granting of the interim order granted on 18 March 2025 and amended on 20 March 2025 by returning the ore the applicant had moved from VAN WYK MINE Chinhoyi within 48 hours of the granting of this order.

5. Costs of suit on the legal practitioner and client scale.

*Murisi & Associates*, the appellant's legal practitioners
*Choga & Associates,* the respondent's legal practitioners

Bachi-Mzawazi J Agrees